

SENATE No. 1340

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to make data on workforce development outcomes public and accessible.

PETITION OF:

NAME:

Patricia D. Jehlen

DISTRICT/ADDRESS:

Second Middlesex

SENATE No. 1340

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 1340) of Patricia D. Jehlen for legislation to make data on workforce development outcomes public and accessible. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1187 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to make data on workforce development outcomes public and accessible.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 14P of chapter 151A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the last sentence in subsection (f) and inserting
3 the following:-

4 The director shall provide information secured under this section to other entities,
5 including any federal, state, or local governmental agency, including the 16 Masshire workforce
6 development boards, as defined under 20 CFR Chapter V pt 603, and a chief elected official as
7 that term is defined in Section 3102(9) of Title 29 of the United States Code, or the agents or
8 contractors of any governmental agency, where such information is to be used for:

(1) evaluation of program performance, including, but not limited to, longitudinal outcome analysis of programs (including programs funded by public or private funds or a combination thereof) to the extent permitted by federal law;

(2) financial or other analysis required by federal, state, or local law or regulation;

(3) preparation of reports required by federal, state, or local law or regulation;

(4) operation of public programs by such agencies, their agents, contractors and subcontractors, whenever the director determines that such information sharing is for the purpose of improving the quality or delivery of program services or to evaluate programs for equitable access and outcomes;

(5) establishment of common case management systems between federal, state, or local agencies delivering or supporting workforce development services for a shared customer base, wherever such common case management system is for the purpose of fostering workforce development partnerships, program coordination, inter-agency collaboration, improving program services, or creating operational efficiencies.

SECTION 2: Said section 14P of said chapter 151A, as so appearing, is hereby further amended by inserting after subsection (i) the following subsection:-

(j) The department shall do the following:

(1) Develop the minimum requirements, as specified under 20 CFR pt 603 subpart B section 603.10, for granting a request for disclosure of information authorized by this section regardless of local, state, or federal funding source,

(2) Develop a standard application for submitting a request for disclosure of information authorized by this section.

(3) Approve or deny a request for disclosure of information authorized by this subsection, or request additional information, within 30 business days of receiving the standard application. The entity submitting the application shall respond to any request by the department for additional information within 20 business days of receipt of the department's request. Within 30 calendar days of receiving any additional information, the department shall provide a final approval or denial of the request for disclosure of information authorized by this subsection. Any approval, denial, or request for additional information shall be in writing. Denials shall identify the reason or category of reasons for the denial.

(4) Make publicly available on the department's website: the minimum requirements for granting a request for disclosure of information authorized by this section, the standard application developed, the timeframe for information request determinations by the department, contact information for assistance with requests for disclosures of information authorized by this subdivision.

(5) For wage data requests that are approved for the department of career services and the Masshire workforce development boards, on a quarterly basis the director of the department of career services shall report to the department the following information on participants, at a minimum, and to the extent the data are available, in order to be appended to the wage match file: participant demographic information; workforce training program and service participation, geographical location of services, and educational and other credential attainment. The

department shall adhere to all applicable state and federal privacy laws, to protect individuals' private information while allowing measurement of aggregate data.

SECTION 3. Not later than 30 days after the effective date of this act, the executive office of labor and workforce development, in consultation with division of unemployment assistance, the department of career services, the commonwealth corporation, the Massachusetts workforce association, the workforce solutions group, and any other appropriate agencies or entities, shall convene a task force to develop the action steps required to improve state workforce data infrastructure and promote data use, with the goal of creating data systems that can illustrate how workforce education and training programs are providing opportunity for sustainable employment in the commonwealth. The task force shall develop action steps to accomplish the following:

(1) Connect education, workforce development and employment data with such data from other states, to the extent permitted by law and in a manner that protects individuals' private information while allowing measurement of aggregate data; and

(2) Ensure adherence to data security and privacy principles, and all applicable state and federal privacy laws, to protect individuals' private information while allowing measurement of aggregate data; and

(3) Improve access to and quality of the wage data is shared with the workforce system by working with the department of career services and the department of unemployment assistance to ensure that the wage data files shared between each agency have sufficient information to allow for effective and ongoing workforce program evaluation; and

(4) Direct the executive office of labor and workforce development to participate in the Massachusetts education-to-career data system and any other state longitudinal data system efforts; and

(5) Review quarterly measures, identifying key trends, analyze equitable access to programs and services, and ensure system partners, stakeholders, and the public have access to data as allowed under state and federal privacy laws; and

(6) Develop a two and six-year plan to guide future system improvements.

The task force shall submit a report, with its findings and recommendations, together with drafts of legislation necessary to carry those recommendations into effect by filing the same with the clerks of the house of representatives and senate, the house and senate committees on ways and means, the joint committee on economic development and emerging technologies, the joint committee on labor and workforce development, the joint committee on higher education and the office of the governor not later than January 1, 2026.